

Avula Yamuna vs Neeli Venkata Naresh Babu on 4 November, 2025

APHC010407022025

IN THE HIGH COURT OF ANDHRA PRADESH
AT AMARAVATI
(Special Original Jurisdiction)

[3397]

TUESDAY, THE FOURTH DAY OF NOVEMBER
TWO THOUSAND AND TWENTY FIVE

PRESENT

THE HONOURABLE SRI JUSTICE VENUTHURUMALLI GOPALA
KRISHNA RAO

TRANS. CIVIL MISC.PETITION NO: 252/2025

Between:

1. AVULA YAMUNA, W/O. NEELI VENKATA NARESH BABU, AGED ABOUT 25 YEARS, R/O. D.NO.8-25, EDIGAPETA STREET, JAMMALAMADUGU, YSR (KADAPA) DISTRICT

...PETITIONER

AND

1. NEELI VENKATA NARESH BABU, S/o. Narasaiah, aged about 39 Years, R/o. D.No.2/1101, Nagarjunapeta, Kadapa, YSR (Kadapa) District

...RESPONDENT

Petition Under Section 24 of the C.P.C. Praying that in the circumstances stated in the affidavit filed therewith, the High Court may be pleased to please to withdraw the F.C.O.P. No.23 of 2023 on the file of the Honble Family Court, Kadapa and transfer the same to the file of the Court of Honble Senior Civil Judge Court, Proddatur and pass

IA NO: 1 OF 2025

Petition under Section 151 CPC praying that in the circumstances stated in the affidavit filed in support of the petition, the High Court may be pleased to please to stay all further proceedings in F.C.O.P. No.23 of 2023 on the file of the Hon hie Family Court, Kadapa, pending disposal of the above Transfer CMP and pass

Counsel for the Petitioner:

1. SHAIK MOHAMMED ISMAIL

Counsel for the Respondent:

1. DHANUNJAYA REDDY K
THE HON'BLE SRI JUSTICE V. GOPALA KRISHNA RAO

TRANSFER CIVIL MISCELLANEOUS PETITION No.252 of 2025

ORDER:

The petitioner/wife herein filed the present petition under Section 24 of the Code of Civil Procedure, 1908, (for short „the C.P.C.) seeking for withdrawal of F.C.O.P.No.23 of 2023 on the file of the Judge, Family Court, Kadapa and transfer the same to the file of the Senior Civil Judge Court, Proddutur, for trial and disposal of the same.

2. The case of the petitioner in brief is as follows:

I. The petitioner is the legally wedded wife of the respondent/husband and the marriage of the petitioner with the respondent was solemnized on 20.11.2020, at A.P. Tourism, Haritha Hotel, Kadapa City, as per the Hindu Rites and Caste Customs. Later, due to the matrimonial disputes between the spouses, the petitioner/wife has been residing separately and depending upon the mercy of her parents at Jammalamadugu Village, Y.S.R. Kadapa District. The petitioner/wife filed three (3) cases against the respondent/husband herein viz., H.M.O.P.No.80 of 2023 on the file of the Senior Civil Judge, Proddutur, under Section 9 of the Hindu Marriage Act, 1955, seeking for seeking restitution of conjugal rights, Maintenance Case vide M.C.No.6 of 2023, under Section 125 of Cr.P.C. seeking maintenance and Domestic Violence Case vide D.V.C.No.8 of 2023 on the file of the Judicial Magistrate of First Class, Jammalamdugu, the aforesaid cares are pending for adjudication.

II. The petitioner/wife further pleaded that to cause inconvenience to her, the respondent/husband had filed F.C.O.P.No.23 of 2023 on the file of the Judge, Family Court, Kadapa, under Section 12(1)(c) of the Hindu Marriage Act, 1955, to declare their marriage as null and void and the same is also pending for adjudication.

III. The petitioner/wife further pleaded that she being a woman, residing separately in her parents house at Jammalamadugu Village, it is very difficult for her to travel to attend the case proceedings which was filed by the respondent/husband before the Court at Kadapa on each and every adjournment without any male assistance and that she was constrained to file the present petition, seeking for withdrawal of F.C.O.P.No.23 of 2023 on the file of the Judge, Family Court, Kadapa and transfer the same to the file of the Senior Civil Judge Court, Proddutur, for trial and disposal of the same.

3. Heard Sri Shaik Mohammed Ismail, learned counsel for the petitioner and Sri K. Dhanunjaya Reddy, learned counsel for the respondent.

4. Perused the material available on record.

5. The material on record prima facie goes to show that, in view of the matrimonial disputes between the spouses, the petitioner/wife has been residing separately in her parents' house at Jammalamadugu Village and she has instituted three (3) cases against the respondent/husband viz., restitution case vide H.M.O.P.No.80 of 2023, Maintenance Case vide M.C.No.6 of 2023 and Domestic Violence Case vide D.V.C.No.8 of 2023 and the aforesaid cases are pending for adjudication and the respondent/husband is also attending the case proceedings before the competent Courts at Proddutur and Jammalamadugu respectively. The material on record further discloses that the respondent/husband had filed case against the petitioner/wife vide F.C.O.P.No.23 of 2023 on the file of the Judge, Family Court, Kadapa, under Section 12(1)(c) of the Hindu Marriage Act, 1955, seeking for nullity of marriage and the same is also pending for adjudication.

6. The Apex Court in a case of *GEETA HEERA Vs HARISH CHANDER HEERA*¹, held by considering the fact that "if a wife does not have sufficient funds to visit the place where the divorce petition is filed by her husband, then the transfer petition filed by the wife may be allowed."

7. The Apex Court in a case of *N.C.V. AISHWARYA VS A.S. SARAVANA KARTHIK SHA*², held as follows:

"9. The cardinal principles for exercise of power under Section 24 of the Code of Civil Procedure is that the ends of justice should demand the transfer of the suit, appeal or other proceeding. In matrimonial matters, wherever Courts are called upon to consider the plea of transfer, the Courts have to take into consideration the economic soundness of both the parties, the social strata of the spouses and their behavioural pattern, their standard of life prior to the marriage and subsequent thereto and the circumstances of both the parties in eking out their livelihood and under whose protective umbrella they are seeking their sustenance to life. Given the prevailing socio- economic (2000) 10 SCC 304 2022 LiveLaw (SC) 627 paradigm in the Indian society, generally, it is the wife's convenience which must be looked at while considering transfer."

8. On considering the submissions made by the learned counsel appearing for both sides and in view of the ratio laid down in the aforesaid case laws and on considering the facts and circumstances of the case that in matrimonial proceedings, the convenience of the wife has to be taken into consideration than that of the inconvenience of the husband and petitioner/wife has been residing separately and depending upon the mercy of her parents at Jammalamadugu, therefore, I am of the considered view that there are justifiable grounds to consider the request made by the petitioner/wife, seeking for withdrawal of F.C.O.P.No.23 of 2023 on the file of the Judge, Family Court, Kadapa and transfer the same to the file of the Senior Civil Judge Court, Proddutur.

9. In the result, the Transfer Civil Miscellaneous Petition is allowed and F.C.O.P.No.23 of 2023 on the file of the Judge, Family Court, Kadapa, is hereby withdrawn and transferred to the file of the Senior Civil Judge Court, Proddutur. The learned Judge, Family Court, Kadapa, shall transmit the case record in F.C.O.P.No.23 of 2023, to the file of the Senior Civil Judge Court, Proddutur, duly indexed as expeditiously as possible preferably within a period of one (01) week from the date of

receipt of a copy of this order. Both the parties are directed to appear before the Senior Civil Judge Court, Proddutur, on 08.12.2025, at 10.30 a.m. There shall be no order as to costs.

As a sequel, miscellaneous petitions, if any pending and the Interim order granted earlier, if any, shall stand closed.

_____ JUSTICE V. GOPALA KRISHNA RAO Date:
04.11.2025 CVD